



U.S. Customs and Border Protection

PUBLIC VERSION

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Ramos Commodity Corporation
5077 NW 7th Street
Miami, FL 33126
Frank82usa@gmail.com

Garrett Kessler
Brad Martin
Kratos Building Products
12901 Nicholson Road, Suite 330
Farmers Branch, TX 78234
gkessler@kratosbp.com
bmartin@kratosbp.com

Re: Notice of Initiation of Investigation and Interim Measures - EAPA Case 8139

To Representatives of the Above-Referenced Entities:

This letter is to inform you that U.S. Customs and Border Protection ("CBP") has commenced a formal investigation of Ramos Commodity Corporation ("Ramos") under Title IV, Section 421 of the Trade Facilitation and Trade Enforcement Act of 2015, commonly referred to as the Enforce and Protect Act ("EAPA"). CBP is investigating whether Ramos evaded antidumping duty ("AD") order A-570-909 on steel nails from the People's Republic of China ("China") when importing steel nails into the United States.¹ CBP has imposed interim measures with respect to Ramos because there is reasonable suspicion that Ramos entered merchandise covered by the *Order* into the customs territory of the United States through evasion.²

Period of Investigation ("POI")

Pursuant to 19 C.F.R. § 165.2, entries covered by an EAPA investigation are those "entries of allegedly covered merchandise made within one year before the receipt of an allegation...." Entry is defined as "the entry, or withdrawal from warehouse for consumption, of merchandise in the customs territory of the United States."³ CBP acknowledged receipt of the properly filed allegation against Ramos on May 22, 2025.⁴ The entries covered by this investigation are those

¹ See *Notice of Antidumping Duty Order: Certain Steel Nails from the People's Republic of China*, 73 FR 44961 (Department of Commerce, August 1, 2008) ("*Order*").

² See 19 U.S.C. § 1517(e); see also 19 C.F.R. § 165.24.

³ See 19 U.S.C. § 1517(a)(4); see also 19 C.F.R. § 165.1.

⁴ See CBP's Official Receipt email for EAPA 8139, dated May 22, 2025.

entered for consumption, or withdrawn from warehouse for consumption, from May 22, 2024, through the pendency of this investigation.⁵

Background

Allegation

CBP will initiate an investigation if it determines that “{t}he information provided in the allegation...reasonably suggests that the covered merchandise has been entered for consumption into the customs territory of the United States through evasion.”⁶ Evasion is defined as “the entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security or any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the covered merchandise.”⁷ Thus, the allegation must reasonably suggest not only that merchandise covered by an AD and/or countervailing duty (“CVD”) order was entered into the customs territory of the United States by the importer alleged to be evading, but also that such entry was made with a material false statement or act, or material omission, that resulted in the reduction or avoidance of applicable AD and/or CVD cash deposits or other security.

On November 14, 2024, the Alleger, Kratos Building Products (“Kratos”), an interested party who is both a U.S. nail importer and wholesaler, submitted EAPA allegation 8139 claiming that Ramos is evading the *Order*.⁸ In the Allegation, Kratos alleges that available information reasonably suggests that Ramos evaded the *Order* by importing Chinese-origin steel nails into the customs territory of the United States by misclassifying the product and transshipping through South Korea.⁹ The details of the Allegation are described below.

Kratos asserts that Ramos, an entity based in Miami, Florida, misclassified pallet nails as roofing nails to evade the *Order*.¹⁰ According to the Allegation, a Kratos customer named [

Company's Name] that supplies tools and fasteners to industrial packaging manufacturers found Ramos brand pallet nails at one of its customer’s locations.¹¹ In its letter to CBP, included in the allegation, [Customer Name] provided a list of its customers who are purchasing steel nails from Ramos.¹² [Customer Name] also provided photos taken at one of its customer’s premises location showing Ramos’ nails in packaging that states “Ramos Commodity Corp. – 15° Wire Collated Coil Nails 1-3/4" x 0.086".”¹³ The description on the packaging includes the nail size and its use or application, which include pallet building box assembly.¹⁴ Kratos argues that steel nails with a thinner shank, such as 0.099" or 0.086", are mostly used in pallet manufacturing and would not meet roofing code requirements for fasteners, which have a thicker shank (0.120").¹⁵

⁵ See 19 C.F.R. § 165.2.

⁶ See 19 C.F.R. § 165.15(b).

⁷ See 19 C.F.R. § 165.1.

⁸ See Letter from Kratos, “EAPA 008139,” dated May 13, 2025 (“Allegation”), at 1.

⁹ See Allegation at 2, 5, and 7.

¹⁰ *Id.* at 1.

¹¹ *Id.* at 1, 6, and 7.

¹² *Id.* at 6.

¹³ *Id.*

¹⁴ *Id.*

¹⁵ *Id.* at 1, 2, and 7.

Kratos also contends that Ramos imported steel nails from China into the United States by transshipment through South Korea.¹⁶ Although photos of Ramos’ nails provided by [Customer Name], and included in the allegation, show no country-of-origin marking on the box, the Allegation contains import records for Ramos’ shipments, which indicates that [Company's Name], a Chinese-based entity, was identified as the supplier of Ramos’ steel nails on the bill of lading.¹⁷ The bills of lading on several shipments also identified China as the country of manufacture while stating South Korea as the country of origin.¹⁸

Initiation Assessment

CBP considered the evidenced submitted by the Alleger in order to determine whether it should initiate investigations of the Importers. Evasion is defined as “entering covered merchandise into the customs territory of the United States by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security or any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the merchandise.”¹⁹ Under 19 C.F.R. § 165.15(b), CBP will initiate an EAPA investigation if it determines that, upon considering the allegation, as supported by evidence reasonably available to the alleger, “{t}he information provided in the allegation... reasonably suggests that the covered merchandise has been entered for consumption into the customs territory of the United States through evasion.”²⁰

In assessing the claims made and evidence provided in the Allegation, CBP found that the information submitted by Kratos reasonably suggests that Ramos entered merchandise covered by the *Order* into the customs territory of the United States by transshipping nails of Chinese origin through South Korea and by misclassification.²¹ Specifically, the import records that Kratos submitted show shipments of nails into United States for which Chinese based company [Company's Name] is identified as the supplier with South Korea declared the country of origin.²² Furthermore, CBP trade data, specifically shipping documents, directly linked the steel nails produced by [Company's Name] to U.S. imports.²³ Further, the photos of its nails that Ramos submitted in response to CBP’s request for additional information,²⁴ match the description and photos²⁵ that Katos provided. In conclusion, CBP found the Allegation reasonably suggested that Ramos entered covered merchandise into the customs territory of the United States by means of evasion.²⁶

¹⁶ *Id.* at 2, 5, 7.

¹⁷ *Id.* at 3, 5.

¹⁸ *Id.* at 5.

¹⁹ See 19 U.S.C. § 1517(a)(5); see also 19 C.F.R. § 165.1 (setting forth the definition of “evasion”).

²⁰ See also 19 U.S.C. § 1517(b)(1).

²¹ See CBP’s Memo, “Initiation of Investigation for EAPA Case Number 8139,” dated June 13, 2025 (“Initiation Memo”) at 1.

²² See Initiation Memo at 2-3, citing Allegation at 5.

²³ See Memo to the File – Shipping Information.

²⁴ See Form CF28s for entry [#]6031 (“Entry 6031 CF 28”) and entry [#]3185 (“Entry 3185 CF 28”), June 30, 2025.

²⁵ See Allegation.

²⁶ See Initiation Memo at 3.

For the reasons set forth herein, CBP initiated an investigation under the authority of 19 U.S.C. § 1517(b)(1) for Ramos' entries of covered merchandise that are alleged to be entered for consumption into the customs territory of the United States through evasion.²⁷

Interim Measures

Not later than 90 calendar days after initiating an investigation under EAPA, TRLED will decide based on the record of the investigation if there is reasonable suspicion that merchandise covered by an AD or CVD order was entered into the United States through evasion.²⁸ CBP need only have sufficient evidence to support a reasonable suspicion that the Importers alleged to be evading entered merchandise covered by an AD or CVD order into the United States by a material false statement or act, or material omission, that resulted in the reduction or avoidance of applicable AD or CVD cash deposits or other security.²⁹ If reasonable suspicion exists, CBP will impose interim measures pursuant to 19 U.S.C. § 1517(e) and 19 C.F.R. § 165.24. As explained below, CBP is imposing interim measures on covered merchandise imported by Ramos because there is reasonable suspicion that it entered Chinese-origin covered merchandise into the United States through evasion.

CBP Form 28 (CF-28s)

After initiating this investigation, on June 30, 2025, CBP issued a CBP Form 28 request for information ("CF28") to Ramos concerning entry [#]6301 ("Entry 6301") and entry [#]3185 ("Entry 3185").³⁰ Specifically, the CF28s requested information and documentation pertaining to the entry summary package, including but not limited to, the mill test certificates, the steel license, invoices, packing lists, bill of lading documents, as well as purchase orders, manifest and shipping documents for all raw materials or components used in the manufacture of the steel nails.³¹ Ramos timely submitted its CF28 Responses on July 15, 2025.

In response to the request for information, Ramos provided the following documentation for both Entry 6031 and Entry 3185 in its CF28 Responses: entry summary documentation, ACE cargo release status, commercial invoice, proforma invoice, packing list, bill of lading documents, photos of container and the freight notice.³² Also included, for both entries, were pictures of nails in boxes with Ramos' label on the boxes.³³ CBP notes that the packing list and proforma invoice for Entry 6031 and Entry 3185 were identical.³⁴

All of the documentation in Ramos's CF28 Response indicated that the manufacturer of the nails was [**Company's Name**] in China.³⁵ However, supporting photos in the CF28 Response lacked country of origin markings and manufacturer details.³⁶ Also included in the Entry 6031 CF28

²⁷ See Initiation Memo. See also 19 C.F.R. § 165.15.

²⁸ See 19 C.F.R. § 165.24(a).

²⁹ See 19 U.S.C. § 1517(e); see also 19 C.F.R. § 165.24.

³⁰ See the CF-28s issued to Ramos on June 30, 2025 (covering entry [#]6031 ("Entry 6031 CF 28") and entry [#]3185 ("Entry 3185 CF 28") (or collectively "CF28 Responses").

³¹ See Ramos' Response to CF 28 Request for Information, Entries [#]6031 and [#]3185, dated January 27, 2025 (Entry 6031 CF 28 Response and Entry 3185 CF 28 Response).

³² *Id.*

³³ *Id.*

³⁴ *Id.*

³⁵ *Id.*

³⁶ *Id.*

Response were pictures of nails in boxes loaded on a truck with the URL [[Website Address](#)] displayed at the bottom of the picture.³⁷ The appearance of the nail packaging displayed in these photos was consistent with the pictures of boxes with Ramos' labeling submitted in the allegation³⁸ as well as in other sections of the CF28 responses.³⁹ These factors suggest that Ramos sourced its steel nails from [[Company's Name](#)] through the Chinese [[Description](#)] website.⁴⁰ The [[Description](#)] website operates an online platform that connects wholesalers in China with individuals and businesses worldwide.⁴¹ Currently, per [[Description](#)]'s website, [[Company's Name](#)] sells [[Description of Product](#)].⁴²

For Entry 6031, Ramos indicated the merchandise was "coil nails for pallets."⁴³ In addition, the photos of Ramos' boxes state the application for these nails is for wooden pallet manufacture and repair.⁴⁴ Moreover, the length size printed on the front of the boxes does not match the description for roofing nails under HTSUS 7117.00.5501. This indicates that the nails imported by Ramos are pallet nails, rather than roofing nails, and thus subject to the *Order*.⁴⁵

In reviewing the CF28 Response, CBP notes there are multiple discrepancies between the photographs and entry documentation with respect to the steel nails entered by Ramos. Based on Ramos' commercial invoice, packing list and proforma invoice, the merchandise for entry was identified as "Vinyl coated screw shank 15-degree coil nails", which indicates the nail was coated with vinyl.⁴⁶ However, pictures of Ramos' nails with the description of its contents provided in the allegation⁴⁷ and the responses,⁴⁸ show "...Bright screw shank blunt diamond point," in which "bright shank" refers to a shank without coating.⁴⁹ The two descriptions of steel nails provided by Ramos suggest two classifications for the imported merchandise. The former is under subheading 7317.00.5502 (galvanized), and the latter under subheading 7317.00.5503 (not galvanized).

CBP further notes a discrepancy as to the description of the steel nail sizes. Per the photos, there are three different sizes of steel nails on the boxes containing Ramos's nails:

- 3" (76.2 mm) length x 0.110" (2.8 mm) shank diameter x 0.275" (7.0 mm) head
- 2" (50.8 mm) length x 0.098" (2.5 mm) shank diameter x 0.248" (6.3 mm) head
- 1-3/4" (44.5 mm) length x 0.086" (2.2 mm) shank diameter x 0.228" (5.8 mm) head.⁵⁰

However, the item description in the commercial invoice, proforma invoice, packing list only listed two sizes of steel nails:

- 2" (50.8 mm) length x 0.098" (2.5 mm) shank diameter x 0.248" (6.3 mm) head
- 1-3/4" (44.5 mm) length x 0.086" (2.2 mm) shank diameter x 0.228" (5.8 mm) head.⁵¹

³⁷ *Id.*

³⁸ *Id.* and Allegation.

³⁹ See Memo to the File – Company Website.

⁴⁰ *Id.*

⁴¹ *Id.*

⁴² *Id.*

⁴³ See Entry 3185 CF 28 Response.

⁴⁴ *Id.*

⁴⁵ See *Order*.

⁴⁶ See Entry 3185 CF 28 Response.

⁴⁷ See Allegation.

⁴⁸ See CF28 Responses.

⁴⁹ *Id.* It should be noted that key words like bright and diamond were misspelled on both instances on the packaging.

⁵⁰ *Id.*

⁵¹ *Id.*

In addition to size discrepancies, there are quantity discrepancies. For 2" (50.8 mm) length x 0.098" (2.5 mm) shank diameter x 0.248" (6.3 mm) head nails, the quantities based on the commercial invoice, proforma invoice, packing list show 9,000 pcs, while the photos show Ramos' label on the front of the box with the description of its contents as 12,000 pcs.⁵² As for 1-3/4" (44.5 mm) length x 0.086" (2.2 mm) shank diameter x 0.228" (5.8 mm) head nails, the quantities based on the invoices and packing list state 14,000 pcs while the photos of the box of Ramos nails show 13,500 pcs.⁵³

Open-source Review

Kratos alleged that Ramos evaded the *Order* by transshipping Chinese-origin steel nails through South Korea, and declared it as South Korean in origin.⁵⁴ However, CBP reviewed CBP trade data in [Name]⁵⁵ and found that, for entries Entry 6031 and Entry 3185, [

Description of Transaction]. CBP also traced the Ramos shipment for Entry 3185 on a public cargo tracking website.⁵⁶ For master bill of lading [#], the shipment, which originated in China, was merely discharged at Busan, South Korea, before being loaded onto another vessel and transferred to the United States, originated in China.⁵⁷ Therefore, this data indicates that Ramos did not import steel nails into the United States by transshipping covered merchandise through South Korea.⁵⁸ However, there is evidence of misclassification and evasion of the Chinese AD duties by entering nails as Type 01 entries.

Analysis

CBP analyzed the CF28 Response, CBP trade data, as well as open-source research which supports the conclusion that reasonable suspicion exists that Ramos engaged in evasion by failing to file a correct entry type. According to Ramos' entry documentation, it entered steel nails under subheading HTSUS 7317.00.5590, which is listed in the *Order* and products classified under that subheading constitute covered merchandise.⁵⁹ The evidence, specifically the [Name] data, analyzed by CBP demonstrates that Ramos failed to properly report a type 03 entry when entering the steel nails from China into the United States.⁶⁰ As stated above, Ramos acknowledged in its CF28 Response that the manufacturer of the nails was [Company's Name] from China.⁶¹ CBP manifest and entry data confirms [Company's Name] as the manufacturer for Ramos' nails.⁶²

Ramos indicated in its CF28 Response that the merchandise was coil nails for pallets, which is covered merchandise subject to the *Order*.⁶³ The photos submitted in the response also show Ramos' nails on the side of boxes with the description of its application for wooden pallet

⁵² *Id.*

⁵³ *Id.*

⁵⁴ See Initiation Memo at 2-3, citing Allegation at 2, 5, 7.

⁵⁵ See CF28 Responses.

⁵⁶ See Memo to the File - Shipping Information.

⁵⁷ *Id.*

⁵⁸ *Id.*

⁵⁹ See CF28 Response.

⁶⁰ *Id.*

⁶¹ *Id.*

⁶² See CF28 Responses and Shipping Information.

⁶³ See Entry 6031 CF 28 Response at 17.

manufacture and repair.⁶⁴ Additionally, as mentioned above, according to the commercial invoice and photos of Ramos' nails submitted in the Response, the imported product is a Vinyl coated screw shank 15 degree coil nails with a length's ranges in 44.5mm to 76.2mm, which does not meet the classification of roofing nails 7117.00.5501 in subheading HTSUS. Therefore, while the record evidence does not suggest that the Chinese-origin steel nails were transshipped into the United States through South Korea, there is reasonable suspicion that Ramos made false statements when it filed entries as type 01 entries and thus evaded payment of applicable antidumping duties.

Enactment of Interim Measures

Based on the record evidence described above, CBP determines that reasonable suspicion exists that Ramos entered Chinese-origin steel nails that is subject to the *Order* into the United States without declaring it as covered merchandise. Therefore, CBP is imposing interim measures on the Importers' entries of nails from China pursuant to this investigation.⁶⁵ Specifically, in accordance with 19 U.S.C. § 1517(e)(1)-(3), CBP shall:

- (1) suspend the liquidation of each unliquidated entry of such covered merchandise that entered on or after June 13, 2025, the date of the initiation of the investigation;
- (2) pursuant to the Commissioner's authority under section 1504(b), extend the period for liquidating each unliquidated entry of such covered merchandise that entered before the date of the initiation of the investigation June 13, 2025; and
- (3) pursuant to the Commissioner's authority under section 1623, take such additional measures as the Commissioner determines necessary to protect the revenue of the United States, including requiring a single transaction bond or additional security or the posting of a cash deposit with respect to such covered merchandise.⁶⁶

In addition, CBP will require live entry and reject any entry summaries that do not comply with live entry and require refile of entries that are within the entry summary rejection period. CBP may also evaluate the Importers' continuous bonds to determine their sufficiency. Finally, CBP may pursue additional enforcement actions, as provided by law, consistent with 19 U.S.C. § 1517(h).

Any future submissions or factual information that you submit to CBP pursuant to this EAPA investigation must be made electronically using EAPA's case management system ("CMS") at <https://eapallegations.cbp.gov/>. Please provide a business confidential version and public version to CBP *via* the CMS to serve the parties to this investigation (*i.e.*, to the parties identified at the top of this notice). Administrative record documents will be available *via* the EAPA Portal; to learn more about the Administrative Protective Order ("APO") process for EAPA investigations, including eligibility requirements, please see the APO Handbook, found at <https://www.cbp.gov/document/user-documentation/administrative-protective-order-apo-handbook>. Please note that CBP is requiring that all documents submitted *via* the CMS be made text searchable, especially if those documents are submitted as PDFs.

⁶⁴ *Id.*

⁶⁵ See 19 U.S.C. § 1517(e); see also 19 C.F.R. § 165.24.

⁶⁶ See also 19 C.F.R. § 165.24(b)(1)(i)-(iii).

Should you have any questions regarding this investigation, you may contact us at eapallegations@cbp.dhs.gov with "EAPA Cons. 8135" in the subject line of your email. Additional information on this investigation, including the applicable statute and regulations, may be found on CBP's website at: <https://www.cbp.gov/trade/trade-enforcement/tftea/eapa>.

Sincerely,

A handwritten signature in blue ink, appearing to read "Victoria Cho".

Victoria Cho
Director, Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
CBP Office of Trade